

24STCV19380 24STCV19380

County: los-angeles

Division: Civil Law and Motion

Department: 407

Hearing date: 2026-06-26

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Case Number: 24STCV19380 Hearing Date: June 26, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: June 26, 2026 TRIAL DATE: November
30, 2026

CASE: Edward Ahn v. Discount Smash, Inc., et al.

CASE NO.: 24STCV19380

PLAINTIFF'S

MOTION FOR SUMMARY JUDGMENT, OR

IN

THE ALTERNATIVE, FOR SUMMARY ADJUDICATION OF ISSUES

MOVING PARTY: Plaintiff

Edward Ahn

RESPONDING PARTY: No opposition

This case concerns the sale of purchase of paintings
by renowned South Korean artist Park Soo-Keun.

In February 2024, "Labtos" listed two paintings by Soo-Keun, A Girl

Taking Care of a Baby and the Girls Taking Care of Babies

(hereinafter collectively called "Paintings"), on EBAY for sale at the purchase
price of "USD \$125,000.00 or Best Offer".

In March 2024, after plaintiff Edward Ahn ("Plaintiff") inquired of defendant Jason Dal Hoon Lee ("Lee") as to the Paintings' provenance, Plaintiff entered into a written agreement to purchase the Paintings in the amount of \$190,750. Per the agreement, Plaintiff gave to Lee an initial payment of \$25,000 made payable to Discount Smash, Inc. Lee agreed to hold and not deposit the check for 30 days to provide Plaintiff the opportunity to have the Paintings appraised and authenticated. Later in March 2024, Plaintiff received two separate reports from the Authentication & Appraisal Committee of Galleries Association of Korea indicating the Paintings were forgeries. Plaintiff notified Lee of the forgeries and demanded the return of the \$25,000 payment, including the expenses incurred in having the Paintings appraised in the amount of \$8,000. However, Lee refused and to date, Plaintiff's deposit has not been returned.

I. BACKGROUND

On August 2, 2024, Plaintiff filed this action against Defendants, Discount Smash, Inc. dba Labtos ("Labtos") and Lee.

On August 21, 2024, Plaintiff filed the operative First Amended Complaint ("FAC") against Defendants alleging causes of action for breach of contract, breach of the covenant of good faith and fair dealing, fraud—intentional misrepresentation, negligent misrepresentation, unfair business practices, and unjust enrichment.

On October 7, 2024, Defendants filed an Answer to the FAC.

On the same day, Labtos filed a Cross-Complaint against Plaintiff for breach of contract and constructive trust.

On November 13, 2024, Plaintiff filed an Answer to the Cross-Complaint.

Motion to Deem Admitted

On April 11, 2025, Plaintiff filed a motion to deem Plaintiff's First Set of Requests for Admissions admitted against Defendants.

On August 14, 2025, the court granted the motion.

Motion for Summary Judgment

On March 3, 2026, Plaintiff filed this motion for summary judgment on the FAC and Cross-Complaint, and alternatively, summary adjudication of issues.

The motion is unopposed.

II. LEGAL STANDARD

The purpose of a motion for summary judgment “is to provide courts with a mechanism to cut through the parties’ pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute.” (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843; Code Civ. Proc., § 437c(c).) A plaintiff reaches its burden on summary judgment by showing prima facie evidence for each element of its cause of action. (Code Civ. Proc., § 437c(p); Scalf v. D. B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1519.) The burden will then shift to the defendant to show the existence of a triable issue of material fact for at least one element of the cause of action at issue. (Ibid.)

Courts “liberally construe the evidence in support of the party opposing summary judgment or summary adjudication and resolve doubts concerning the evidence in favor of that party.” (Dore v. Arnold Worldwide, Inc. (2006) 39 Cal.4th 384, 389.) However, if all inferences reasonably deducible from the submitted evidence are uncontradicted by other inferences and there is no triable issue as to any material fact, the moving party is entitled to summary adjudication as a matter of law. (Code Civ. Proc., § 437c(c); Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119.)

III. DISCUSSION

Plaintiff moves for summary judgment on his causes of action against Defendants and Labtos’ crossclaims, or alternatively, summary adjudication of issues on all causes of action in the FAC, alleged defenses

asserted in the Answer, and all alleged causes of action in the Cross-Complaint. The grounds for the motion are straightforward. According to Plaintiff, Defendants cannot raise a material issue of fact as to each cause of action or defense following the deemed admissions.

The court will deny the motion. Although the court deemed admitted Plaintiff's admissions requests against Defendants, and Defendants have not filed an opposition, Plaintiff's motion is completely devoid of any analysis or discussion connecting those deemed admissions to any claim or defense asserted in this matter. Plaintiff even fails to identify in the notice of motion or the separate statement what issues for which he seeks adjudication. The court will not do the work for Plaintiff, especially when an order granting summary judgment would terminate litigation on the merits of this action.

IV. CONCLUSION

The motion is DENIED WITHOUT PREJUDICE.

Moving party to give notice.

Dated: June 26, 2026

Brock T. Hammond

Judge of the Superior Court